

ASCII MASTER FLOW – PANEL 1/12: The central question of the clause and the three doors from wrong to punishment

CENTRAL QUESTION -> when, and on what terms, may a political community
turn a wrong into a crime and attach punishment to it?

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THREE DOORS, THREE SEPARATE KEYS (never open door 3 from door 1)

DOOR 1 WRONGDOING -> has a justified ethical norm been breached?

DOOR 2 CRIMINALISATION-> may the state bring this inside the code?

DOOR 3 PUNISHMENT -> by which theory, and within which limits?

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LEGAL CRIME vs MORAL WRONG -- overlapping, not identical

A law only -> an unjust law criminalises innocent conduct

B overlap -> murder, theft: legal AND moral wrong (paradigm)

C wrong only -> a grave moral wrong the code never reached

CONSEQUENCE -> validity does not prove justice; wrongness does not
prove criminalisability

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THREE ACCOUNTS OF CRIME, WITH THE LIMIT ATTACHED TO EACH

legal-positivist -> what has the law prohibited? limit: validity
certainty and fair notice != justice

moral -> what wrongful harm occurred? limit: vagueness

sociological -> which power relations define limit: weakens
deviance? certainty

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THE CRIMINALISATION FILTER -- five gates in series

harm -> rights -> public wrong -> culpability -> proportionality

FAIL ANY GATE -> criminalisation unjustified, however disliked

CONTROL -> abhorrence is not a licence; the theory of punishment
begins only after gate five has been cleared.

ASCII MASTER FLOW – PANEL 2/12: Conditions of responsible punishment and the classification of the five theories

PUNISHMENT = hard treatment + AUTHORITATIVE CENSURE, imposed by a competent public authority for a proved breach

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SEVEN ENABLING CONDITIONS (all must hold before any theory is reached)

- 1 public law known in advance -> conduct is guidable
- 2 voluntary act or legally relevant omission
- 3 culpability GRADED: intention > knowledge > recklessness > negligence
- 4 fair procedure and reliable proof
- 5 competent and impartial authority
- 6 proportionality between wrong, responsibility and sanction
- 7 equal application without status bias

DISTINCTION -> responsibility is NOT causal contribution: one may contribute without knowledge or control, and an official may be responsible for culpable omission

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FIVE THEORIES	DIRECTION	CENTRAL TEST	MAIN DANGER
retributive	backward	desert	vengeance, excess
deterrent	forward	expected prevention	offender used as a means
incapacitative	forward	necessity + risk	indefinite or biased confinement
reformative	forward	reintegration	paternalism; victims neglected
restorative	relational	acknowledgement and repair	unequal bargaining unsuitable cases

CONTROL -> punishment differs from revenge by being public, proportionate, impartial and rule-governed.

ASCII MASTER FLOW – PANEL 3/12: The retributive argument: desert as ground and as ceiling

CLAIM -> punish BECAUSE a culpable wrong was done, not in order to
produce a future benefit

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FOUR-STEP ARGUMENT (reproduce as numbered premises)

- (1) the crime asserts a MAXIM incompatible with equal right
- (2) IMPUTABLE AGENCY makes the offender answerable for it
- (3) a PROPORTIONATE legal response publicly denies that maxim
- (4) the denial expresses RESPECT FOR RIGHT, not private revenge

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+--> KANT: punishment answers the culpable act; the offender
| is an end, never a mere instrument of deterrence

+--> HEGEL: punishment is the ANNULMENT of the crime's
wrongful claim; it restores right and honours the
offender as a responsible agent

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OBJECTION -> suffering does not undo suffering; desert alone does not
show why the STATE should add pain to the world

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REPLY -> LIMITING (negative) RETRIBUTIVISM

never WITHOUT desert | never BEYOND desert

maximising form: desert REQUIRES the penalty -> rights objection
bites here

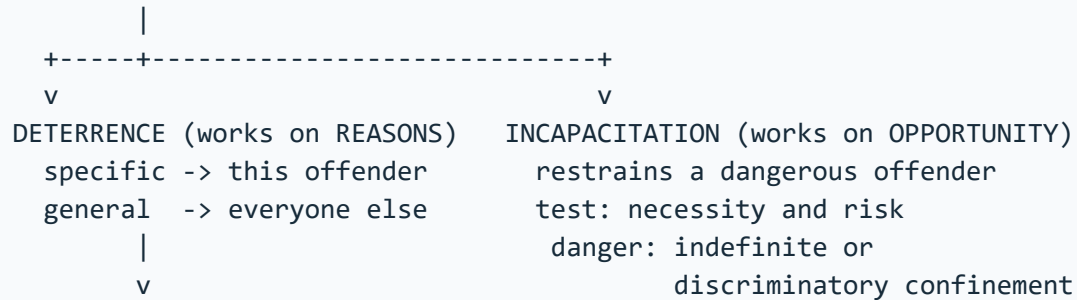
limiting form: desert PERMITS up to a ceiling -> rights objection
fails here

RESIDUAL LIMIT -> the limiting form buys defence by surrendering the
positive aim, so Q1 remains unanswered and passes to the grid.

CONTROL -> retribution is public, proportionate and impartial;
vengeance is private, unbounded and partisan.

ASCII MASTER FLOW – PANEL 4/12: Deterrence and incapacitation weighed on the same axes

FORWARD-LOOKING PREVENTION splits into two arguments with two targets



FOUR PRESUPPOSITIONS OF THE DETERRENT CLAIM

- persons respond to perceived costs
- sanctions are known and sufficiently certain
- preventive benefit exceeds direct and collateral harm
- less harmful alternatives are inadequate

BECCARIA / BENTHAM -> CERTAINTY and PROMPTNESS outweigh SEVERITY;
all punishment is an evil, justified only by
preventing a greater evil

WHERE THE OBJECTION LANDS

- at Q1 general aim ----- strong: prevention is a statable purpose
- at Q2 who may be punished FAILS: permits convicting a known innocent
 - reply -> rule-utilitarian legality and due process are themselves utility-maximising rules
 - rejoinder-> protection then rests on a calculation that could come out the other way; rights should constrain utility independently
- at Q3 how much ----- FAILS: no ceiling without a desert limit

CONTROL -> comparative deterrent effect is an EMPIRICAL CONTROVERSY;
never report it as proved or disproved.

ASCII MASTER FLOW – PANEL 5/12: Reform, dignity and the two proportionality dimensions for juveniles

REFORMATIVE THESIS -> the offender is capable of moral development
and of return to lawful membership

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DIGNITY ARGUMENT, four steps

- (1) persons are more than their worst act
 - (2) responsible agency can be impaired and rebuilt
 - (3) a humane state reduces wrongdoing by CAPABILITY, not degradation
 - (4) punishment must preserve a ROUTE BACK to membership
- addresses ignorance, addiction, trauma, exclusion, distorted
incentives -- WITHOUT denying responsibility

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TWO DIMENSIONS OF PROPORTIONALITY

ORDINAL -> ranks offences against one another

CARDINAL -> fixes how severe the WHOLE penal scale may be

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JUVENILE DECISION SEQUENCE

seriousness of harm -> intention and understanding ->

developmental capacity -> susceptibility to influence ->

prospects of reform -> procedural reliability

RESULT -> harm may rank high ORDINALLY while reduced and developing

agency lowers CULPABILITY, so the deserved point on the

CARDINAL scale falls

VERDICT -> the nature of the crime is RELEVANT but NOT CONCLUSIVE;

offence-centred and offender-centred views are integrated

OBJECTION -> compulsory treatment pathologises dissent, runs indefinitely

REPLY -> bounded rehabilitation: proportionate band, consent where
possible, periodic review, rights; capacity, not conformity.

ASCII MASTER FLOW – PANEL 6/12: The three-question grid and the mixed or limiting theory

THE CLASSIC MISTAKE -> one answer offered to three different questions

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Q	THE QUESTION	BEST ANSWER	FAILS FOR
Q1	why should the institution exist? GENERAL JUSTIFYING AIM	forward-looking prevention, protection, security	pure retribution
Q2	whom may we punish, on what condition? DISTRIBUTION/LIABILITY	backward-looking desert: guilt, voluntary act, culpability	pure deterrence
Q3	how much punishment is permissible? AMOUNT/SEVERITY	proportionality: ordinal ranking + cardinal ceiling	pure deterrence

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THE SEPARATION ARGUMENT (associated with Hart)

- (1) an institution may be justified by its general benefit while its applications follow an independent principle of fairness
- (2) ordinary institutional reasoning: the point of promise-keeping differs from the rules fixing who is bound by a given promise
- (3) prevention supplies the AIM; desert supplies the SIDE-CONSTRAINT
- (4) therefore MIXED / TWO-LEVEL THEORY: consequentialist in aim, retributivist in constraint

PRESUPPOSITION -> aim and application principle can come apart; the pure retributivist denies exactly this

CONTROL -> each objection now has an ADDRESS: punishing the innocent lands at Q2; why-inflict-suffering lands at Q1.

ASCII MASTER FLOW – PANEL 7/12: Expressive, communicative and restorative theories compared

WHAT SEPARATES PUNISHMENT FROM A MERE PENALTY? -> CONDEMNATION

a parking fine and a conviction both impose hardship; only the second carries authoritative reprobation (FEINBERG)

explains -> wrongful conviction is a distinct wrong; degrading punishment is objectionable apart from severity; acquittal is a VINDICATION, not a mere release

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AXIS	EXPRESSIVE	COMMUNICATIVE	RESTORATIVE
direction	one-way	two-way address	relational
offender is	object of judgment	rational participant	active participant
aim	denunciation	repentance, reconciliation	reparation, reintegration
hard treatment	credible censure	SECULAR PENANCE	measured by repair needed
central question	what is deserved	are you answerable?	who was hurt, what is needed?

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DUFF'S STANDING CONDITION -> a polity that has denied a person the conditions of citizenship has weakened its STANDING to call him to account. An argument about standing, not about causation.

BRAITHWAITE -> stigmatising shaming condemns the PERSON, severs bonds, is criminogenic; reintegrative shaming condemns the ACT and keeps the route back open. Presupposes inclusion and reacceptance.

FOUCAULT CAVEAT -> discipline, panopticism, docile bodies, produced delinquency: GENEALOGY of penal power, never a justification.

ASCII MASTER FLOW – PANEL 8/12: Corruption: entrusted power, particularism and the systemic-ethical verdict

CORRUPTION = misuse of ENTRUSTED public or institutional power through partial, concealed or improperly exchanged advantage. Wider than bribery: favouritism, nepotism, embezzlement, regulatory capture, abuse of discretion

FIVE WRONGS, IN ORDER OF DEPTH

- breach of fiduciary trust -> office creates obligations
- violation of impartiality -> like cases treated unlike
- injury to the rule of law -> private access displaces public rules
- harm to civic agency -> citizens become clients, not equals
- institutional corrosion -> honest action becomes costly

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PARTICULARISTIC vs UNIVERSALISTIC STANDARDS (2025 Q1a route)

- (1) personal relations generate GENUINE duties
- (2) public office is entrusted for a specified common purpose
- (3) discharging private loyalty through office costs unrepresented citizens
- (4) corruption = a legitimate PARTICULAR loyalty acted upon inside a role governed by UNIVERSAL criteria

REMEDY -> role boundaries, conflict-of-interest rules, recusal --
not the abolition of loyalty

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ETHICAL or SYSTEMIC? (2022 Q1c route)

ethical: greed, dishonesty, weak integrity -> moral education
systemic: opacity, monopoly, discretion, impunity -> transparency,
audit, competition, accountability

VERDICT -> an ETHICAL ACT inside a SYSTEMIC ECOLOGY; structure
shapes opportunity and cost but does not erase agency.

REGIME -> no regime is automatically immune; regime type affects
information, accountability and competition, not outcomes alone.

ASCII MASTER FLOW – PANEL 9/12: Mass violence: mechanisms and the five kinds of collective responsibility

MASS VIOLENCE = large-scale violence against populations produced by
organised coercion, collective mobilisation or cascading participation

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SIX MECHANISMS THAT LOWER THE THRESHOLD

dehumanisation -> victims figured as contaminants or non-persons

moral exclusion -> ordinary restraints withdrawn from an out-group

diffusion of responsibility -> agency treated as fragmented

obedience and bureaucracy -> harm routinised as role-performance

polarisation and propaganda -> ambiguity and dissent suppressed

security dilemma -> pre-emption reinterpreted as self-defence

ARENDT -> thoughtlessness, cliché and careerism, not demonic depth;

the thesis concerns the PSYCHOLOGY of perpetration, never

the DEGREE of guilt

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FIVE KINDS OF COLLECTIVE RESPONSIBILITY

criminal guilt	defensible: paradigm	individuals only
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organisational liability	defensible where the	institutions,
	body has real agency	commands, parties

political responsibility	partly: grounds	citizens
	reparation and reform	collectively

responsibility for	yes, graded by	individuals, by
omission	knowledge, capacity	role and situation

inherited/metaphysical	NO -- the perpetrator's	rejected
guilt	own reasoning	

RULE -> guilt is INDIVIDUAL; responsibility admits collective forms

RELIGIOUSLY FRAMED VIOLENCE -> separate doctrine from mobilisation;

communal violence from pogrom from genocide; identity as TARGET

from identity as MOTIVE. Answer at the level of criteria only.

ASCII MASTER FLOW – PANEL 10/12: Genocide: Lemkin's coinage, the 1948 Convention and the neighbouring categories

1944 LEMKIN, Axis Rule in Occupied Europe -> coins GENOCIDE from
Greek genos (race, tribe) + Latin -cide (killing)

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LEMKIN'S CONCEPTION -> a coordinated plan aimed at destroying
the ESSENTIAL FOUNDATIONS OF THE LIFE of a group: institutions,
culture, language, religion, economic existence, personal
security, liberty, health, dignity. Killing is ONE method.

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1948 CONVENTION ON THE PREVENTION AND PUNISHMENT OF THE CRIME OF
GENOCIDE -> specified acts + SPECIFIC INTENT to destroy, in
whole or in part, a NATIONAL, ETHNICAL, RACIAL or RELIGIOUS
group, AS SUCH. 1951 -> entry into force.
PRECISION -> the adopted text is NARROWER than Lemkin; political
groups are NOT among the protected categories

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WHY IT IS A DISTINCTIVE MORAL WRONG

victims attacked as MEMBERS of a group marked for destruction
cultural and generational continuity is targeted
the perpetrator claims power to decide which human plurality exists
individual killing and collective annihilatory purpose are joined

NEIGHBOURING CATEGORIES -- do not merge them

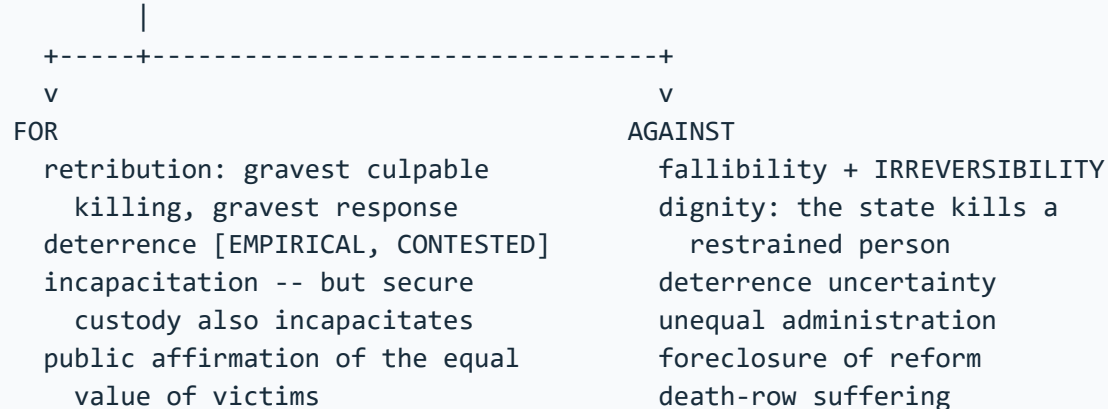
mass violence -> scale and pattern; no fixed intent test
genocide -> specific intent against a protected group
crimes against humanity-> widespread or systematic attack on a
civilian population

war crime -> serious violation tied to armed conflict

CONTROL -> not every massacre is genocide; intent is decisive, may be
inferred from a pattern, and NO episode or actor is named here.

ASCII MASTER FLOW – PANEL 11/12: Capital punishment: the argument tree, objections and replies

CAPITAL PUNISHMENT = the state's intentional execution of a convicted and SECURED offender -- irreversible, and it removes the very agent whose responsibility, reform and rights penal theory relies upon



IS THE RIGHT TO LIFE ABSOLUTE? (2025 Q3a route)

- (1) a right may be fundamental WITHOUT being exceptionless
- (2) it yields to a PRESENT unjust threat: self-defence, necessity
- (3) execution follows CUSTODY and ADJUDICATION
- (4) less final means of incapacitation are available
- (5) therefore the defensive permission does NOT transfer

KANTIAN TENSION -> desert supports the penalty; persons-as-ends
intensifies concern about certainty and instrumental deterrence

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INDIAN ILLUSTRATIONS, CLASSIFIED

Bachan Singh v. State of Punjab (1980) -> Supreme Court JUDGMENT;
retained the penalty, formulated the rarest of rare limitation
Law Commission Report No. 262 (2015) -> ADVISORY REPORT; recommended
abolition for ordinary crimes, excluding specified terrorism-
related and war contexts. Not legislation, not a judgment.

FOUR STANDING DEBATES OF THE CLAUSE

Kant vs Bentham -> desert vs prevention; backward vs forward;
sanctified suffering vs instrumentalising
retribution vs reform -> a FALSE alternative: desert sets the upper
limit, humane reform works inside it
Arendt vs monster -> thoughtless bureaucratic participation vs
theories of evil evil placed outside ordinary humanity;
the two are not exclusive
loyalty vs impartiality-> particular bonds are real, but entrusted
office is not private property

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DIRECTIVE DECODER -- the verb fixes the structure

Explain -> statement, premises, key distinction, illustration
Discuss -> theory, rival, objection, reply, verdict
Critically examine -> two objections, replies, residual problems
Is X justified? -> Q1 aim, Q2 liability, Q3 amount, verdict
Abolish or retain? -> name the CRITERION first, then apply
Is X a form of Y? -> state Y's conditions, test X, graded verdict
Do you agree that..? -> qualified commitment FIRST, then defend

UNIVERSAL ANSWER SPINE (any stem in this clause)

name the penal question -> separate Q1/Q2/Q3 -> strongest rival on
the SAME question -> one objection, reply, residual limit -> one
correctly classified illustration -> GRADED VERDICT

GRADED VERDICT BANK -- adapt, never reproduce mechanically

layered | question-separating | fallibility | standing |
conditional-appropriateness | differentiated-responsibility |
critical-qualification

FINAL CONTROL -> separate philosophical validity from implementation
and from empirical effect; that separation is the marked move.